

		testimony of lender’s statement “[n]o problem” concerning future loan applications, and that lender “agreed to process the loan application and said he would comply” was insufficient to establish false promise to make loan).) Second, Defendant’s evidence establishes that any reliance by Plaintiff on Defendant’s statements was not reasonable. Plaintiff is a well-educated individual with business experience, who previously purchased property and entered into a written lease, similar to the subject Mesa Property. (UMF 1-7, 10, 12.) It is not reasonable for Plaintiff to rely on the messages from Defendant Leon that he identifies in his responses to written discovery, which are vague and speculative, as a reason to purchase the Mesa Property without a guarantee of a Lease. Moreover, Defendant did not have authority to bind The Illumination Foundation as he had resigned from the board. (UMF 13-19) Furthermore, Defendant submits evidence that Plaintiff was aware at the time he purchased the Mesa Property that any future lease agreement for the Mesa Property would be contingent on Illumination Foundation receiving funding to operate the property, which had not yet occurred. (UMF 13, 25-25.) Defendant meets its burden as the moving party to show that multiple elements of Plaintiff’s two misrepresentation causes of action cannot be established. Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) Plaintiff did not oppose this motion, and thus fails to meet his burden to establish a triable issue of material fact. Defendant shall give notice.
8	Lopez v. Trans-Pak Inc. 2024-01437506	Motion for Leave to File Cross Complaint Defendant Trans Pak, Inc.’s unopposed motion for leave to file its proposed cross-complaint against BaronHR and Luis Perez is granted. [ROA #86.] Defendant is to file its proposed cross-complaint no later than August 17, 2026.

Legal Standard

A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. Code Civ. Proc. § 428.50(a).

Any other cross-complaint may be filed at any time before the court has set the first trial date. Code Civ. Proc. § 428.50(b); *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:553.

A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Code Civ. Proc. § 428.50(c). There is a liberal policy regarding the filing of cross-complaints. *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:557. If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. Code Civ. Proc. § 428.50(c). There is a liberal policy regarding the filing of cross-complaints. *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:557.

On the other hand, if the proposed cross-complaint is compulsory, leave *must* be granted so long as defendant is acting in good faith. Code Civ. Proc. § 426.50; *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:555.

A cross-complaint can only be compulsory if it is against the plaintiff or another defendant already asserting cross claims against the party seeking to file a cross-complaint. Code Civ. Proc. §§ 426.10, 426.30(a).

A complaint is compulsory if any of its causes of action is related to the causes of action in the complaint. Code Civ. Proc. § 426.30(a). A related cause of action “means a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” Code Civ. Proc. § 426.10(c).

A liberal construction is given to the application of the compulsory cross-complaint statute. *Align Technology, Inc. v. Bao Tran* (2009) 179 Cal.App.4th 949, 967. “The test requires not an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them”. The key question is “are any factual or legal issues relevant to both claims?” The goal is to avoid duplication of time and effort that comes from separate suits on the same events.

		<i>Currie Medical Specialties, Inc. v. Bowen</i> (1982) 136 Cal.App.3d 774, 777. In fact, cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. <i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39. This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” <i>Id.</i> at 39. Discussion Defendant’s proposed cross-complaint includes indemnity causes of action. Further, in the absence of opposition there is no claim of prejudice and no reason not to follow the general rule of liberal amendment. Accordingly, Defendant’s motion for leave to file its proposed cross-complaint is granted. The court will set a Case Management Conference on 9/14/26 at 1:30 p.m. concurrent with future discovery motions previously calendared. Trans Pak to give notice.
9	Krishna Menon v. Saddleback Memorial 2024-01379144	Motion for Summary Judgment <u>Evidentiary Objections</u> Plaintiffs’ evidentiary objections, nos. 1 through 4, are overruled. (See ROA 192.) The Court declines to rule on objections, nos. 5 and 6, because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) <u>Summary Judgment Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her